

26STCV06278 26STCV06278

County: los-angeles

Division: Civil Law and Motion

Department: 514

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Case Number: 26STCV06278 Hearing Date: July 13, 2026 Dept: 514

Paek v. Lee

26STCV06278

Defendants' Demurrer to Complaint

Tentative

Ruling

The demurrer is PLACED OFF

CALENDAR.

The Court will call this matter

to proceed with the Case Management Conference.

On February 26, 2026, Daniel

Paek, Won Bong Chang, Ha Bum Kim, and Donghoon Lee (collectively "Plaintiffs")

filed a complaint against Jason Lee, Jonathan Park aka Jonathan S. Park aka

Sungwoo Park aka Jonathan Sungwoo Park, Aeon International Trust, and Does 1

through 50, asserting causes of action for (1) intentional misrepresentation

and concealment, (2) negligent misrepresentation and concealment, (3) breach of

fiduciary duty, (4) conspiracy, (5) unjust enrichment, (6) common count, and

(7) accounting, all arising out of certain investments.

On May 8, 2026, Jason

Lee, Jonathan Park, and Aeon International (collectively "Defendants") filed a

demurrer to Plaintiffs' Complaint.

On June 26, 2026, Plaintiffs filed

a First Amended Complaint.

"A party may

amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties. The time for responding to an amended pleading shall be computed from the date of service of the amended pleading." (Code Civ. Proc., § 472, subd. (a).)

Plaintiffs

have exercised their right to file their First Amended Complaint. The First Amended Complaint was timely filed before the time for opposition to the demurrer on June 26, 2026.

Accordingly,

the demurrer is placed off calendar.

Moving party

is ordered to give notice.